

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 16
JUDICIAL OFFICER: BENJAMIN T REYES II
HEARING DATE: 02/25/2026

**INSTRUCTIONS FOR CONTESTING TENTATIVE RULING IN
DEPARTMENT 16**

The tentative ruling will become the ruling of the Court unless by 4:00 P.M. of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 16 (Dept16@contracosta.courts.ca.gov) to request argument and **must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why.** Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00 P.M. of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

The prevailing party must prepare and e-file a proposed order after hearing in accordance with CRC 3.1312. The order must include appearances. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED THAT PROPER NOTIFICATION IS RECEIVED BY THE DEPARTMENT AS PER ABOVE.

Zoom link-

<https://www.zoomgov.com/j/1619504895?pwd=NOV1N3JFRnJ0TEVoSDNrTGRzakF3UT09>

ID: 161 950 4895

Password: 812674

Courtroom Clerk's Session

1. 9:00 AM CASE NUMBER: C25-01916

CASE NAME: JODI MURPHY VS. WENDY WONG, MD

***FURTHER CASE MANAGEMENT CONFERENCE**

FILED BY:

TENTATIVE RULING:

This case management conference (CMC) trails the hearings for Lines 13-14. Counsel are ordered to appear remotely via Zoom to attend the CMC. If the tentative rulings for lines 13 and 14 are uncontested or unopposed, no appearance is required and this CMC is continued to August 18, 2026 at 8:30 a.m. in Dept. 16.

2. 9:00 AM CASE NUMBER: C24-01926
CASE NAME: PETER HO VS. CITY OF CITRUS HEIGHTS
HEARING ON DEMURRER TO: HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY:
TENTATIVE RULING:

Before the Court is a demurrer by the City of Citrus Heights to Plaintiff's first amended complaint. For the reasons set forth, the demurrer is **sustained**, **without leave to amend**.

Background

In his operative first amended complaint ("FAC"), Plaintiff Peter Ho appears to allege a single cause of action for "wrongful and fraudulent home receivership." (FAC p. 1.) His FAC was filed after a demurrer by the City of Citrus Heights to the original complaint was sustained, with leave to amend.

Plaintiff summarizes his claim in the lawsuit as "to recover damages caused by a wrongful and fraudulent home receivership for building health and safety code (HSC) concerns caused by the defendant." (FAC p.1, ll. 24-26.) Plaintiff indeed reiterates the basis of his claim: "My home was unjustly and unfairly placed into a City code enforcement health and safety home receivership in April 2021. The case was unjustly and unfairly heard." (FAC p. 2, ll. 14-15.)

The Health & Safety Code receivership was imposed in April 2021 in a case before the Superior Court for the County of Sacramento, *City of Citrus Heights v. Peter Y. Ho*, Case No. 34-2021-00292266 ("Receivership Case") (see Def. RJN Exhs. 1-4). Plaintiff challenged the imposition of the Health & Safety Code receivership and the conduct of the City, the Court-appointed receiver, and others in a related action in the Superior Court for the County of Sacramento, *Peter Y. Ho v. City of Citrus Heights*, Case No. 34-2023-00335222 ("2023 Ho Action") (see Def. RJN Exhs. 5-11). The 2023 Ho Action was dismissed with prejudice after the Court sustained the City's demurrer to Ho's first amended complaint in that action without leave to amend. (Def. RJN Exh. 11.)

Plaintiff then initiated this lawsuit, reiterating his challenges to the Health & Safety Code receivership and events in the Receivership Case in a complaint filed on July 26, 2024. Plaintiff is appearing in pro per. Despite filings indicating Plaintiff was seeking counsel to represent him, no counsel has made an appearance for Plaintiff in the case. (See, e.g., Mtn. for Continuance filed 3/21/2025 p. 2 [referring to seeking counsel and finding financing for counsel], Opp to Dem. to FAC filed 1/8/2026 p. 18, ll. 7-8 [Plaintiff in process of retaining counsel, expected to have attorney week of January 12, 2026].)

Legal Standards Governing Demurrer

In ruling on the demurrer, the Court must accept as true all well-pleaded factual allegations of the complaint, but not legal or factual conclusions or contentions of law. (*City of Dinuba v. County of Tulare* (2007) 41 Cal. 4th 859, 865; *Julian v. Mission Community Hospital* (2017) 11 Cal.App.5th 360, 374.) The Court gives "the complaint a reasonable interpretation, reading it as a whole and its parts in their context. [Citation omitted.]" (*Evans v. City of Berkeley* (2006) 38 Cal. 4th 1, 6.) (See also Code Civ. Proc. § 452.) Statutory causes of action must be pleaded with particularity; the "complaint must plead every fact which is essential to the cause of action under the statute." (*Baskin v. Hughes Realty, Inc.* (2018) 25 Cal.App.5th 184, 207.) (See also *Fischer v. San Pedro Peninsula Hospital* (1989) 214 Cal.App.3d 590, 604.)

In ruling on a demurrer, the Court also considers matters of which the Court can properly take judicial

notice. (*Carloss v. County of Alameda* (2015) 242 Cal. App.4th 116, 123.) "[I]t is well established a trial court may take notice of an earlier judgment in deciding whether to sustain a demurrer on *res judicata* grounds." (*Kirkpatrick v. City of Oceanside* (1991) 232 Cal.App.3d 267, 281 [citing *Carroll v. Puritan Leasing Co.* (1978) 77 Cal.App.3d 481, 486].) "The court may sustain a demurrer on claim preclusion grounds '[i]f all of the facts necessary to show that the action is barred are within the complaint or subject to judicial notice' [Citation omitted.]" (*Thompson v. Ioane* (2017) 11 Cal.App.5th 1180, 1190-1191 [quoting *Carroll v. Puritan Leasing Co.*, *supra*, 77 Cal.App.3d at 485].)

"The plaintiff bears the burden of establishing that the facts pleaded establish every element of the cause of action. [Citation omitted.] Plaintiff must overcome each legal ground upon which the trial court sustained the demurrer. [Citation omitted.] Finally, plaintiff must prove there is a reasonable possibility that he can amend his pleading to overcome any legal defects. [Citation omitted.]" (*Gillies v. JPMorgan Chase Bank, N.A.* (2017) 7 Cal.App.5th 907, 912.)

Defendant's Request for Judicial Notice

The City asks the Court to take judicial notice of Court filings and orders of the Sacramento County Superior Court in the Receivership Case, *City of Citrus Heights v. Peter Y. Ho*, Case No. 34-2021-00292266 (Def. RJN Exhs. 1-4), and in the 2023 Ho Action, *Peter Y. Ho v. City of Citrus Heights*, Case No. 34-2023-00335222 (Def. RJN Exhs. 5-11). The unopposed request is **granted**, subject to the applicable limitations on judicial notice under the case law. (*StorMedia, Inc. v. Superior Court* (1999) 20 Cal.4th 449, 457, fn. 9; *Fremont Indemnity Co. v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 113-115; *Sosinsky v. Grant* (1992) 6 Cal. App. 4th 1548, 1569 [judicial notice of prior order or judgment].) The Court notes that Ho filed a notice of related cases on February 28, 2025 which identifies the Receivership Case and the 2023 Ho Action as related cases.

Plaintiff's Late Opposition, Exhibits to the Demurrer Opposition, and Supplemental Opposition filed February 13, 2026

All papers in opposition to a motion are required to be filed and served at least nine court days prior to the date of the hearing. (Code Civ. Proc. § 1005(b).) The original hearing date on the demurrer was January 21, 2026. On January 8, 2026, Plaintiff filed a late opposition to the demurrer for the January 21, 2026 hearing, as the opposition was filed eight court days prior to January 21, 2026, in light of the January 19, 2026 court holiday. Further, the proof of service of the opposition Plaintiff filed on January 20, 2026 shows it was served by mail two days later on January 10, 2026, rather than on the date of filing and by overnight mail, personal service, or email. (Code Civ. Proc. § 1005(b).) The opposition also arguably exceeds the 15-page limit, though the last few pages describe the content of exhibits attached to the opposition, and it does not contain the required tables. (Cal. R. Ct., Rule 3.1113(d) ["no opening or responding memorandum may exceed 15 pages"], and Rule 3.1113(f) ["memorandum that exceeds 10 pages must include a table of contents and a table of authorities"].) Despite the deficiencies, the Court will consider the original opposition as the City has not objected to the opposition on any of these procedural grounds.

Plaintiff has attached unauthenticated exhibits to the January 8, 2026 opposition to the demurrer. Even if authenticated, the Court cannot consider evidence in ruling on a demurrer except matters subject to judicial notice. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.)

The Court continued the January 21, 2026 hearing on the demurrer for the City to file and serve the

request for judicial notice referred to in its demurrer. On February 13, 2026, seven court days prior to the continued hearing, Plaintiff filed a "supplemental opposition" to the demurrer. There is no proof of service on file for the supplemental opposition as of the date this tentative ruling was prepared. The February 13, 2026 supplemental opposition is untimely, and the Court does not have evidence the pleading was served on the City. The Court will not consider it. Plaintiff is not excused from compliance with applicable law, procedures, and rules merely because he is a self-represented litigant. (*Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 984-985; *Gamet v. Blanchard* (2001) 91 Cal.App.4th 1276, 1284-1285.)

Note on the City's Papers

In its opening memorandum and reply, the City refers to an appeal to the Court of Appeal and a petition to the California Supreme Court, apparently in connection with one of the prior actions between the City and Plaintiff. (See, e.g., MPA ISO Dem. p. 8, ll. 19-20, ll. 24-25; Reply p. 2, ll. 4-7.) These arguments stated in general terms are unsupported by documents before the Court, including the City's request for judicial notice, which does not include any appellate filings, appellate orders, or other appellate rulings. (Def. RJN Exhs. 1-11.) The Court therefore does not consider those arguments in this ruling.

The City also includes evidence with the Wakefield declaration beyond evidence related to the parties' required meet and confer prior to the filing of the demurrer, including the Receiver's Second Report in the Receivership Action. (Wakefield Decl. Exh. 5.) The Court does not consider that evidence in ruling on the demurrer to the extent it is offered for more than the fact the report was filed in the receivership and that the Receiver made statements in the report, the truth or interpretation of which may be reasonably disputable. (*StorMedia, supra*, 20 Cal.4th at 457, fn. 9; *Fremont Indemnity, supra*, 148 Cal.App.4th at 113-115.)

Meet and Confer

The Court has before it a declaration of counsel Wakefield under penalty of perjury regarding his multiple attempts to meet and confer with Plaintiff prior to filing the demurrer. (Wakefield Decl. ¶¶ 4, 5.) The opposition contests that there was an attempt to meet and confer but without any evidence to support the contest. (Opp. p. 14, l. 22 – p. 15, l. 5.) The Court finds the unrefuted evidence of the City's meet and confer efforts that were not responded to is sufficient to satisfy Code of Civil Procedure section 430.41(a). The Court also notes that it cannot sustain or overrule a demurrer based on the inadequacy of the meet and confer in any event. (Code Civ. Proc. § 430.41(a)(4).)

Analysis

The City asserts a number of grounds for why the FAC does not allege facts sufficient to state a cause of action against it. The City contends that the claims are barred by *res judicata*, by Plaintiff's failure to file a timely government claim or seek relief to file a late government claim under the Government Claims Act, and by multiple government immunity statutes. The City also contends that Plaintiff has not alleged any statutory basis for the claims against the City in the FAC.

A. Plaintiff's Allegations

Parsing through the 39-page FAC, Plaintiff's claims are grounded in what Plaintiff contends was a wrongful imposition of a receivership over his former residence under Health & Safety Code section

Code sections 17980.1 through 17980.8 based on allegedly defective service of the petition for imposition of the receivership, and later alleged improper actions by the Receiver in conducting the receivership, such as alleged removal of the bathrooms, reconfiguring the kitchen, other remodeling and staging the home for sale. (FAC p. 3, l. 20 – p. 6, l. 8 [service, notice, receivership imposed too fast]; FAC p. 6, l. 10 – p. 7, l. 18 [receivership excess work, fees]; FAC p. 8, l. 5 – p. 9, l. 17 [service, notice]; FAC p. 9, l. 25 – p. 10, l. 8 [improper receivership, excessive fees]; FAC p. 13, l. 9 – p. 14, l. 13 [service]; FAC p. 19, l. 6 – 16 [service]; FAC p. 19, ll. 18-22 [receiver excessive work]; FAC p. 24, l. 7 – p. 33, l. 8 [service, notice], FAC p. 34, l. 24 – p. 35, l. 6 [service], FAC p. 35, ll. 16-17 [excessive fees], FAC p. 36, ll. 1-11 [service, notice], FAC p. 37, l. 21 – p. 38, l. 7 [service, notice].)

The receivership was imposed based on a petition filed by the City on January 12, 2021. (Def. RJN Exhs. 1-3.) A receiver was appointed by the Court over the property by order filed April 15, 2021. (Def. RJN Exh. 4.) Plaintiff alleges the home was listed for sale beginning in September 2022 to December 2022, and he alleges the Receiver's fees and expenses had reached \$306,000 as of December 2022, which is his primary claim for damages in this action. (FAC p. 6, ll. 13- p. 7, l. 17 and prayer p. 22, l. 4.) He alleges the sale of the property was authorized in March 2023. (FAC p. 16, ll. 19-20.)

Plaintiff alleges that he was not properly served with the papers initiating the receivership, that the process server's affidavit was untruthful in the service declaration, that the fact the process server was paid approximately \$1,100 for multiple (four) service attempts indicates "bribery" as the fee was excessive, and that the City's attorneys relied on the affidavit of service that Plaintiff contends was false. (See, e.g., FAC p. 13, l. 9 – p. 14, l. 13; FAC p. 24, l. 7 – p. 33, l. 8.) He alleges his answer deadline was "backdated," and he was not allowed to be heard, but it is clear he appeared at the April 14, 2021 hearing on the receivership and contested the petition, the hearing, and the alleged improper service and inadequate notice based on his allegations. (See, e.g., FAC p. 13, l. 9 – p. 14, l. 13; FAC p. 24, l. 7 – p. 33, l. 8.) (See also Def. RJN Exhs. 2, 3.)

He also alleges facts indicating he continued to appear and contest the conduct of the receivership during the two-year period between its imposition in April 2021 and Court approval of the sale of the property in March 2023. (FAC p. 16, ll. 19-20; FAC p. 23, ll. 4-7.) Plaintiff concedes that his loss commenced when the receivership commenced in April 2021. (FAC p. 17, ll. 11-14.) But Plaintiff also alleges that he "filed and communicated" his objections and contentions to the Court regarding the matters of which he complains, and the Court rejected his claims. (FAC p. 23, ll. 4-7.) He essentially alleges that he was not fairly treated because the Court rejected his arguments. (*Id.*)

Plaintiff filed a complaint against the City initiating the Ho 2023 Action on February 23, 2023 based on the alleged wrongful Health & Safety Code receivership and misconduct of the City, its attorneys, and the Court-appointed receiver in the course of the 2021 Receivership Action. (Def. RJN Exh. 5.) Plaintiff alleges that prior to filing the complaint in the 2023 Ho Action, he appeared before the "City leaders" at a City council meeting in January 2023 to air his grievances about the receivership and alleged misconduct of "city operators" and his "inability to have the judge/court recognize the truth and illegal behavior." (FAC p. 19, ll. 1-4.) Plaintiff filed a first amended complaint in the 2023 Ho Action. (Def. RJN Exh. 8.)

The FAC in this case reiterates the same or substantially similar facts as the basis for Plaintiff's claims against the City as those alleged by Plaintiff in the 2023 Ho Action. (*Compare* Def. RJN Exhs. 5 and 8 to

FAC.) The Court sustained a demurrer by the City without leave to amend, dismissed the 2023 Ho Action, and granted judgment for the City on February 1, 2024. (Def. RJN Exh. 11.) He alleges that there was unfairness in the 2023 Ho Action because he contends that the City's demurrer to his complaint and/or first amended complaint in that action were untimely. (FAC p. 23, ll. 21-23; FAC p. 33, l. 11 – p. 34, l. 5; FAC p. 36, l. 16 – p. 37, l. 19.)

Plaintiff's FAC is replete with references to fraud, corruption, bribery, perjury, illegality, and similar terms which are factual or legal contentions or conclusions that are disregarded in ruling on a demurrer under the legal standards cited above. In response to the Court's prior order allowing Plaintiff leave to attempt to amend, Plaintiff has added certain legal arguments and citations to portions of the Penal Code to his FAC. The essential facts on which Plaintiff's claim for wrongful receivership rests, however, are the substantially the same facts raised by Plaintiff in disputing the receivership in the Receivership Action, in Plaintiff's 2023 Ho Action, and in the original complaint in this case. (*Compare* Complaint and FAC to Def. RJN Exhs. 5, 8.)

B. Res Judicata and Failure to Allege Timely Government Claim Presentation

The Court may take judicial notice of prior orders in another action in ruling on a demurrer to determine if the claims asserted in the current litigation are barred by *res judicata* or collateral estoppel. (*Shine v. Williams Sonoma Inc.* (2018) 23 Cal.App.5th 1070, 1076-1077.) In taking judicial notice of the content of the prior orders in the Receivership Case and the 2023 Ho Action, the Court does not accept that the findings are necessarily correct, but rather that the findings were made and the issues or claims therefore determined in the prior final orders such that the orders bar relitigation of issues or claims decided in those prior actions. (*Steed v. Department of Consumer Affairs* (2012) 204 Cal.App.4th 112, 120 ["Judicial notice is properly taken of the existence of a factual finding in another proceeding, but not of the truth of that finding. [Citations omitted.] 'A court may take judicial notice of [another] court's action but may not use it to prove the truth of the facts found and recited. [Citations.]' [Citations omitted, italics in original.]"]; *Kilroy v. State of California* (2004) 119 Cal.App.4th 140, 148 ["[E]ven though a factual finding in a prior judicial decision may not establish the truth of that fact for purposes of judicial notice, the finding itself may be a proper subject of judicial notice if it has a *res judicata* or collateral estoppel effect in a subsequent action."].)

The City's *res judicata* argument is that the order sustaining the demurrer without leave to amend and dismissing the Ho 2023 Action with prejudice operates as a bar to relitigation of the claims alleged in the FAC in this case. Code of Civil Procedure section 581(f)(1) allows a court to dismiss an action with prejudice when a demurrer is sustained without leave to amend, as the Court did in the 2023 Ho Action. (RJN Exh. 11.)

The *res judicata* effect of an order with respect to an order sustaining a demurrer without leave to amend and dismissal of an action depends on the grounds on which the demurrer was sustained. (*See, e.g., Pollock v. University of Southern California* (2003) 112 Cal.App.4th 1416, 1427-1428; *Boyd v. Freeman* (2017) 18 Cal.App.5th 847, 855.) The order sustaining the demurrer in the 2023 Ho Action was made on the ground that Ho did not allege he timely filed a government claim to challenge the imposition of the receivership in April 2021, that the deadline for filing such a claim had passed before he filed the government claim and by the time he filed the 2023 Ho Action, that Ho did not allege he timely applied to the City to accept a late claim, and that if the application was denied, that

Ho timely moved for relief from the government claim filing requirement. (Def. RJN Exh. 11.)

1. Plaintiff's Government Claim Allegations

Plaintiff in the FAC attempts to address his government claim presentation at pages 16-18 of the FAC. He alleges that he presented the government claim on August 7, 2023, but he admits the receivership commenced in April 2021 and his loss "started" at that time. (FAC pp. 16-18.) Plaintiff himself characterizes his claim as one for "wrongful fraudulent receivership" over his home. (FAC p. 1.) His allegations repeatedly refer to an allegedly false service affidavit by the process server and improper or insufficient notice and opportunity to oppose the receivership, claims he also admits he raised and litigated in the Receivership Action as cited above. (*See also* Def. RJN Exhs. 2, 3.)

"Accrual of the cause of action for purposes of the government claims statute is the date of accrual that would pertain under the statute of limitations applicable to a dispute between private litigants. [Citation omitted.]" (*Shirk v. Vista Unified School Dist.* (2007) 42 Cal. 4th 201, 208-209, superseded by statute on other grounds, citing among other authorities Government Code section 901.) Under Government Code section 901, "the date of the accrual of a cause of action to which a claim relates is the date upon which the cause of action would be deemed to have accrued within the meaning of the statute of limitations which would be applicable thereto if there were no requirement that a claim be presented to and be acted upon by the public entity before an action could be commenced thereon."

A cause of action generally accrues when it is "complete with all its elements." (*E-Fab, Inc. v. Accountants Inc. Services* (2007) 153 Cal.App.4th 1308, 1317 [quoting *Fox v. Ethicon Endo-Surgery, Inc.* (2005) 35 Cal.4th 797, 806].) The City's petition to impose the Health & Safety Code receivership was filed in January 2021. Plaintiff's FAC repeatedly asserts he was injured and his rights denied when the receivership was imposed in April 2021, which is when the allegedly "wrongful" receivership was instituted, when the Receiver was appointed, and the Receiver was authorized to take exclusive possession and control of the property. (RJN Exhs. 1-4.) The Court's tentative ruling and minute order on the City's petition in the Receivership Action shows that in March 2021, Plaintiff filed multiple responses to the City's petition contesting the City's right to proceed and disputing service, among other things. (Def. RJN Exhs. 2, 3.) Plaintiff's government claim included in the records subject to the request for judicial notice, as cited by the City, identifies his claim as accruing in April 2021, the time the receivership was imposed, as well as May 2021 when Plaintiff alleges he was barred from his home. (Def. RJN Exh. 8 and govt. claim attached thereto.) Plaintiff alleges that he did not file his government claim until August 7, 2023 (FAC p. 18, ll. 13-14.), which was well over two years later.

Plaintiff alleges that he "worked for 2 years from April 2021 thru March 2023 to stop and have this unjust receivership corrected" (FAC p. 16, ll. 19-20 [emphasis added]), an admission that Plaintiff both presented his contests to the receivership in the Receivership Action during that period and had an opportunity to be heard during that time, and that he was aware he had suffered damage by the alleged wrongful conduct of the City and others that caused him damage as of April 2021 and thereafter as the receivership continued. These and other allegations indicate the facts on which his claim for wrongful receivership claim are grounded arose and the elements of his wrongful receivership claim were complete as of April or May 2021, when he alleges he was not properly served with the petition for the Health & Safety Code receivership, that the basis for imposing the receivership in or about April 2021 was improper, and that he was barred from his home in May 2021

and thereafter, when the Receiver incurred fees and expenses Plaintiff alleges were excessive. (See, e.g., FAC p. 13, l. 9 – p. 14, l. 13 and other citations above.) These allegations are included in substance in his original complaint and first amended complaint in the 2023 Ho Action. (Def. RJN Exhs. 5 and 8.)

2. The Effect of the 2023 Ho Action Order Sustaining the Demurrer and Granting Judgment

The City argues the order sustaining the demurrer and dismissing the 2023 Ho Action went to the merits of Plaintiff's claim because timely presentation of a government claim or of an application allowing a late-filed claim is an essential element of a cause of action against a public entity. "Timely claim presentation is not merely a procedural requirement, but is, as this court long ago concluded, '[] a condition precedent to plaintiff's maintaining an action against defendant []' [citations, internal quotation marks omitted], and thus an element of the plaintiff's cause of action. [Citation omitted.] Complaints that do not allege facts demonstrating either that a claim was timely presented or that compliance with the claims statute is excused are subject to a general demurrer for not stating facts sufficient to constitute a cause of action. [Citation omitted.]" (*Shirk, supra*, 42 Cal. 4th at 209 [citing *State of California v. Superior Court (Bodde)* (2004) 32 Cal.4th 1234, 1240, quoting *Williams v. Horvath* (1976) 16 Cal.3d 834, 842].)

These authorities support that claim presentation, either on a timely basis or after application for allowance of a late-filed claim, is an element going to the merits of the claim made in the complaint and first amended complaint in the 2023 Ho Action, and that the order sustaining the demurrer without leave to amend and granting judgment for the City therefore went to the merits of Plaintiff's claim for *res judicata* purposes. As the City highlights, the Sacramento Court's order recites that the City raised the government claim issue in the demurrer to the first amended complaint, that Plaintiff had an opportunity to respond to the City's demurrer on the claims presentation issue to demonstrate the timeliness of his government claim or application to file a late claim, that Plaintiff failed to oppose the City's demurrer on that ground, and that the Court found "Plaintiff's failure to oppose this specific ground as a concession on the merits." (Def. RJN Exh. 11 [citing *Chadbourne, Inc. v. Superior Court* (1964) 60 Cal.2d 723, 728 fn. 4].) The Court takes judicial notice that the Court made that ruling, dismissed the claim against the City, and granted judgment for the City in the 2023 Ho Action for purposes of *res judicata*. (*Shine, supra*, 23 Cal.App.5th at 1076-1077; *Kilroy, supra*, 119 Cal.App.4th at 148.)

Further, under the collateral estoppel doctrine subsumed in *res judicata*, the order sustaining the demurrer without leave to amend and judgment in the 2023 Ho Action bars Plaintiff from relitigating the same issue in this action, specifically, that his August 2023 government claim, the only government claim he alleges he filed, was timely. (*DKN Holdings, LLC v. Faeber* (2015) 61 Cal.4th 813, 824 [explaining claim preclusion and issue preclusion under the umbrella doctrine of *res judicata*, stating " 'Claim preclusion' prevents relitigation of the same cause of action in a second suit between the same parties or parties in privity with them." [Citation omitted.] Claim preclusion arises if a second suit involves (1) the same cause of action (2) between the same parties (3) after a final judgment on the merits in the first suit. [Citations omitted.] If claim preclusion is established, it operates to bar relitigation of the claim altogether. [¶] *Issue preclusion* prohibits the relitigation of

issues argued and decided in a previous case, even if the second suit raises different causes of action. [Citation omitted.] Under issue preclusion, the prior judgment conclusively resolves an issue actually litigated and determined in the first action [Citation omitted.] There is a limit to the reach of issue preclusion, however. In accordance with due process, it can be asserted only against a party to the first lawsuit, or one in privity with a party. [Citation omitted.]" (*Italics in original.*)

The FAC in the 2023 Ho Action identified the same three groups of actors who allegedly committed wrongs in connection with the Receivership Action as the three groups identified in the FAC in this case. (Compare Def. RJN Exh. 10 [Dem. and supporting pleadings Exh. 3, Ho's FAC in the 2023 Ho Action, p. 2, ll. 17-24] to FAC p. 3, ll. 1-3.) The allegations of both are identical and explicitly allege wrongdoing in the "Receivership Action." The Court's subsequent judgment in favor of the City and dismissal of the 2023 Ho Action operates as *res judicata* barred Plaintiff's attempt to assert those same claims of liability by the City in this action.

Plaintiff is attempting to reassert substantially the same claims against the City in this action that were previously decided on the merits by the Court's order and judgment (Def. RJN Exh. 11) in the 2023 Ho Action. Plaintiff was clearly a party to the prior 2023 Ho Action. The Court's determination of the issue of the timely government claim litigated on the merits on the City's demurrer and entry of final judgment in the 2023 Ho Action are binding on Plaintiff, precluding relitigation of his claims and that specific issue in this case. The doctrine of *res judicata* therefore bars the re-litigation of those claims against the City in this action.

3. Fraud Exception to Res Judicata Doctrine

Plaintiff alleges that "extrinsic fraud" warrants the Court not applying *res judicata* to bar his claims against the City. (FAC pp. 14-15.) Plaintiff cites an 1878 United States Supreme Court decision, *United States v. Throckmorton* (1878) 98 U.S. 61 which affirmed an order sustaining a demurrer to a claim concerning a land grant. The complaining party asserted that there was fraud in obtaining confirmation of the land grant claim before the board of commissioners of private lands in California and before the federal district court which affirmed the decree of the commissioners. In rejecting the fraud claim as a basis for collateral attack on the prior determinations, the Court found that there had been time for any proof of fraud to be presented in the proceedings before the commissioners and the district court, including subsequent appeals. (*Id.* at 62.) The Court further rejected that the fraud exception to *res judicata* applied because the exception applies when it is shown that through fraud or deception by the other side, the party had been kept away from the Court or never had knowledge of the suit such that there had never been a "real contest" or trial. (*Id.* at 65-66.)

The extrinsic fraud exception is equally inapplicable here. The record shows, and Plaintiff concedes, that he made repeated filings and communicated his objections to service, notice, and the merits of imposing the receivership in the Receivership Action (Def. RJN Exhs. 2, 3 and portions of FAC previously cited; Def. RJN Exh. 10 [in particular, RJN ¶¶ 2-4 in support of City's demurrer to first amended complaint in 2023 HO Action), and that Plaintiff then asserted a collateral challenge to the imposition of the receivership in the 2023 Ho Action, which was dismissed and judgment entered for the City. (Def. RJN Exhs. 5, 8, and 11.)

The other decisions cited by Plaintiff in the FAC are inapposite and/or unpersuasive. (*Aghaeepour v.*

N. Leasing Sys. (S.D.N.Y. 2019) 378 F. Supp. 3d 254, 265-270 [nonbinding federal district court decision applying New York law and addressing factually and legally inapposite case involving massive fraudulent enterprise with litigation scheme based on forged documents, stating "Plaintiffs, through this action, do not seek to overturn the underlying default judgments. Whether those are overturned will depend on the merits of the [Attorney General]'s aggregated action. Further, while the underlying actions refer to the fraudulent leases, there is no elaboration nor adjudication regarding the alleged scheme Defendants orchestrated that mechanistically produced default judgments," another ground why *res judicata* did not apply to the claims alleged in the action before the district court]; *Wells Fargo Bank, N.A. v. Weinberg* (2014) 227 Cal.App.4th 1, 6-8 [factually and legally inapposite, holding *res judicata* and collateral estoppel did not apply to bar amendment of judgment to add party as additional judgment debtor under alter ego theory, where issue of new judgment debtor's alter ego status arose after the complaint was filed, plaintiff had not raised or litigated alter ego claim, and no and alter ego claim had been determined, stating "Amending judgments under Code of Civil Procedure section 187 is an equitable procedure. [Citation omitted.] Because Wells Fargo is not seeking new relief but to enforce its judgment, *res judicata* does not apply."].)

In *Hudson v. Foster* (2021) 68 Cal. App. 5th 640 cited by the City, the Court explained extrinsic fraud in the context of a probate proceeding in which a conservatee appealed an order denying the conservatee's motion to vacate the approval of the final account of the fiduciary conservator because the conservatee contended the order was obtained through extrinsic fraud. (*Id.* at 660-661.) "Courts require a showing of extrinsic fraud or mistake in order to balance the public policy in favor of the finality of judgments with the policy in favor of providing litigants a fair opportunity to present a case. [Citation omitted.] . . . [¶] Fraud is extrinsic when a party is prevented from fully participating in the proceeding or deprived of the opportunity to present a claim to the court by the fraudulent conduct of another party, as opposed to the moving party's own negligence. [Citations omitted.] 'The clearest examples of extrinsic fraud are cases in which the aggrieved party is kept in ignorance of the proceeding or is in some other way induced not to appear. [Citation.]' [Citation omitted.] Other examples include 'concealment of the existence of a community property asset, failure to give notice of the action to the other party, and convincing the other party not to obtain counsel because the matter will not proceed (and then it does proceed). [Citation omitted.]' [Citation omitted.]" (*Id.* at 664.)

In contrast, "Fraud is generally considered intrinsic when a party had notice of the action and an opportunity to present a case, but unreasonably neglected to protect themselves from fraud or mistake involving the merits of the proceeding. [Citation omitted.]" (*Id.*) The Court continued, "[E]quitable relief will be denied where it is sought to relitigate an issue involved in the former proceeding on the ground that allegations or proof of either party was fraudulent or based on mistake, but such relief may be granted if the party seeking it was precluded by fraud or the mistake of the other party from participating in the proceeding or from fully presenting his case. [Citations omitted.]" (*Id.* at 665 [emphasis added].) (*See also Home Ins. Co. v. Zurich Ins. Co.* (2002) 96 Cal. App. 4th 17, 27 [discussing extrinsic and intrinsic fraud in similar terms, and stating, "Generally, the introduction of perjured testimony or false documents, or the concealment or suppression of material evidence is deemed intrinsic fraud. [Citation omitted.]".])

Plaintiff's allegations of fraud, perjury, or "bribery" based on alleged excessive charges for the process

server, or information presented in affidavits or other filings in the Receivership Action which Plaintiff disputed as untruthful, all relate to matters Plaintiff either raised and litigated or matters that he could have raised and litigated in the Receivership Action, as shown by the allegations of the FAC summarized above (*see also* Def. RJN Exhs. 1-4), and in the 2023 Ho Action (RJN Exhs. 5, 8, 10 [including RJN ¶¶ 2-4], 11) if Plaintiff had filed a timely government claim. Neither the FAC factual allegations nor the records of the Receivership Action subject to judicial notice show that Plaintiff was not apprised of the existence of the petition, the proposed receivership, and the events of the receivership, or that Plaintiff did not have an opportunity to present his disputes in the Sacramento Superior Court or by appeal of any adverse ruling, including any disputes regarding perjury, fraud, bribery or other illegalities allegedly occurring during the Receivership Action. There are no allegations or matters subject to judicial notice that indicate Plaintiff's 2023 Ho Action was dismissed because of any extrinsic fraud rather than because of Plaintiff's own negligence in not timely filing a government claim, a judgment which Plaintiff also could have sought relief from by appeal but which appears to be final. The allegations of the FAC and matters subject to judicial notice show that Plaintiff is seeking to relitigate the claims he made in the Receivership Action and 2023 Ho Action by collateral attack to try to obtain a different result, which is not a basis for application of the extrinsic fraud exception.

The City's demurrer to the FAC is therefore **sustained** on these grounds, **without leave to amend**.

C. Court Does Not Need to Reach the City's Immunity Arguments

The City raises arguments in the demurrer regarding multiple grounds for the City's immunity from liability for whatever acts or omissions Plaintiff alleges code enforcement, the law firm, or the Receiver allegedly committed. The Court does not need to reach those additional grounds for sustaining the demurrer.

D. No Leave to Amend

Plaintiff has been given the opportunity to try to amend his complaint to state claims against the City. This opportunity is in addition to the opportunities Plaintiff had to contest the receivership and alleged improprieties of the code enforcement officials, the law firm, and the Receiver in the Receivership Action, and again in the 2023 Ho Action. The Court rejects Plaintiff's contentions that the extrinsic fraud exception applies for the reasons stated. Plaintiff has not demonstrated that he has the ability to amend the FAC to allege additional facts to state a cause of action against the City in light of the facts which show his claims are barred by *res judicata* for the reasons stated.